

Moved by Nichols

Seconded by Lakey

IN THE SENATE
SENATE AMENDMENT TO S.B. NO. 1232

AMENDMENT TO SECTION 2

On page 1 of the printed bill, in line 22, following "expression." insert: "This chapter shall apply to proceeds derived from criminal notoriety without regard to the expressive content or medium through which such proceeds are generated and shall not be construed to regulate speech or expression."; delete lines 26 through 37, and insert:

"(2) "Exploit" or "exploitation" means knowingly and commercially deriving financial gain where the criminal notoriety of a crime is a substantial contributing factor to the value of the proceeds. Incidental, educational, journalistic, or expressive references to a crime that are not undertaken for the purpose of deriving commercial gain from criminal notoriety shall not constitute exploitation under the provisions of this chapter.

(3) "Notoriety of a crime" means the public attention from a crime when directly connected to the offender's part in the crime.

(4) "Offender" means a person convicted of a criminal offense in this state.

(5) "Proceeds" means any money, royalties, or other thing of value received by an offender that is derived from the criminal notoriety of a crime, regardless of the medium or form in which the proceeds are generated."; and in line 38, delete "(5)" and insert: "(6)".

On page 2, in line 2, delete ", performance, or appearance".